VOLUME 5 AIRMAN CERTIFICATION

CHAPTER 2 TITLE 14 CFR PART 61 CERTIFICATION OF PILOTS AND FLIGHT INSTRUCTORS

Section 5 Miscellaneous 14 CFR Part 61 Certification Information

Source Basis:

- **Title 14 CFR Part 3 Subpart C, Designated U.S. Agents for Service.**
- **Title 14 CFR § 61.3, Requirement for Certificates, Ratings, and Authorizations.**
- **Title 14 CFR § 61.5, Certificates and Ratings Issued Under This Part.**
- **Title 14 CFR § 61.7, Obsolete Certificates and Ratings.**
- **Title 14 CFR § 61.19, Duration of Pilot and Instructor Certificates and Privileges.**
- **Title 14 CFR § 61.27, Voluntary Surrender or Exchange of Certificate.**
- **Title 14 CFR § 61.31, Type Rating Requirements, Additional Training, and Authorization Requirements.**
- **Title 14 CFR § 61.45, Practical Tests: Required Aircraft and Equipment.**
- **Title 14 CFR § 61.51, Pilot Logbooks.**
- **Title 14 CFR § 61.53, Prohibition on Operations During Medical Deficiency.**
- **Title 14 CFR § 61.58, Pilot-in-Command Proficiency Check: Operation of an Aircraft That Requires More Than One Pilot Flight Crewmember or is Turbojet-Powered.**
- **Title 14 CFR § 61.63, Additional Aircraft Ratings (Other Than for Ratings at the Airline Transport Pilot Certification Level).**
- **Title 14 CFR § 61.65, Instrument Rating Requirements.**
- **Title 14 CFR § 61.75, Private Pilot Certificate Issued on the Basis of a Foreign Pilot License.**
- **Title 14 CFR § 61.83, Eligibility Requirements for Student Pilots.**
- **Title 14 CFR § 61.87, Solo Requirements for Student Pilots.**
- **Title 14 CFR § 61.96, Applicability and Eligibility Requirements: General.**
- **Title 14 CFR § 61.103, Eligibility Requirements: General.**
- **Title 14 CFR § 61.123, Eligibility Requirements: General.**
- **Title 14 CFR § 61.153, Eligibility Requirements: General.**
- **Title 14 CFR § 61.183, Eligibility Requirements.**
- **Title 14 CFR § 61.213, Eligibility Requirements.**
- **Title 14 CFR § 61.305, What Are the Age and Language Requirements for a Sport Pilot Certificate?**
- **Title 14 CFR § 61.403, What Are the Age, Language, and Pilot Certificate Requirements for a Flight Instructor Certificate With a Sport Pilot Rating?**
- **Title 14 CFR § 91.531, Second in Command Requirements.**
- **Title 14 CFR § 103.7, Certification and Registration.**
- **Title 14 CFR § 135.99, Composition of Flight Crew.**

5-311 GENERAL. The information in this section is supplemental and does not always apply directly to the actual certification of airmen. Some of the information is safety related. Aviation

safety inspectors (ASI) should be aware of this information and share it with pilots, flight instructors, and evaluators. Consider the information in this section during surveillance of applicants, certificate holders (CH), and evaluators. For reference, topics covered in this section include:

- Use of a flight simulation training device (FSTD) to conduct a Title 14 of the Code of Federal Regulations (14 CFR) § 61.58 pilot-in-command (PIC) proficiency check;
- Using an FSTD or aircraft for a practical test and 14 CFR § 61.45 practical test aircraft requirements;
- English language standards for pilots and applicants;
- U.S. agent for service required for applicants and airmen with a foreign address and no U.S. address of record on file;
- Operating limitations for hearing- or speech-impaired applicants and instructors;
- Pilot certificate requirements and the logging of flight time in hang gliders, ultralights, powered (motorized) gliders, and other vehicles;
- Pilot type rating requirements in aircraft certificated under Special Federal Aviation Regulation (SFAR) 41;
- Training and testing in SFAR 41 airplanes for pilots with a "SECOND-IN-COMMAND REQUIRED" limitation on their type rating;
- Amendment and replacement of valid pilot certificates, including lighter-than-air;
- Voluntary surrender of a certificate or rating;
- Reporting a deceased airman;
- Lost logbooks or flight records;
- Authentication of old and new airman certificates to identify forgeries or counterfeits; and
- Removal of the 14 CFR § 61.64(f)(2) Supervised Operating Experience (SOE) limitation from an aircraft type rating on a pilot certificate.

NOTE: See Volume 5, Chapter 2, Section 22 for information relating to type ratings limited to second-in-command (SIC) privileges.

5-312 USE OF AN FSTD APPROVED TO CONDUCT 14 CFR § 61.58 PIC PROFICIENCY CHECKS. Title 14 CFR § 61.58 specifies requirements for pilots serving as PICs of aircraft certificated for more than one pilot or that are turbojet-powered. The PIC must have completed a proficiency check in the particular type aircraft since the beginning of the 24th calendar month before the month in which the pilot acts as PIC. Within the preceding 12 calendar months the PIC must have completed a PIC proficiency check in an aircraft that is type certificated for more than one required pilot crewmember or is turbojet-powered. The PIC proficiency checks of 14 CFR § 61.58 may be performed in an FSTD in accordance with the applicable provisions set forth in 14 CFR § 61.58(g). See Volume 5, Chapter 2, Section 20 for additional information.

5-313 USE OF AN FSTD OR AIRCRAFT IN ACCORDANCE WITH 14 CFR § 61.45. Applicants are permitted to use an approved FSTD during the practical test. If not accomplishing the entire flight increment of a practical test in an FSTD, however, applicants must furnish an aircraft that has equipment for areas of operation required for the practical test and without

prescribed operating limitations that prohibit its use in any of the areas of operation required for the practical test. Placement of appropriate and available operating limitations on the applicant's Temporary Airman Certificate (Federal Aviation Administration (FAA) Form 8060-4) or rating, however, may allow use of an aircraft with operating characteristics that preclude the applicant from performing certain required tasks for the practical test.

5-314 ENGLISH LANGUAGE REQUIREMENTS FOR PILOT CERTIFICATION.

A. The International Civil Aviation Organization (ICAO) Language Standard. There is no FAA regulatory requirement for pilots operating U.S.-registered aircraft within the United States to have an English proficiency endorsement on their FAA pilot certificates. While the language proficiency endorsement on an FAA certificate is an ICAO standard, evaluators apply longstanding FAA requirements for English proficiency when determining eligibility for an FAA pilot certificate. The current rules in 14 CFR parts 61 and 107 require that the applicant be able to read, speak, write, and understand the English language. As a member of ICAO, the United States has English proficiency standards that meet ICAO Level 4 language proficiency requirements. In order to be eligible for and continue to hold a 14 CFR part 61 certificate, an individual needs to be able to demonstrate at least this level of English language proficiency unless there is a medical reason for the deficiency, as referenced in paragraph 5-315.

B. The FAA Aviation English Language Standard (AELS). As happens with required skills, pilots and instructors sometimes lose language proficiency over time or through lack of use. Therefore, during certification tests, flight reviews, proficiency checks, and the FAA-sponsored Pilot Proficiency Program (WINGS), and in the daily course of business conduct, the responsible evaluator or instructor verifies the English competency of the applicant—even if the applicant is a longstanding FAA CH. Evaluators and instructors determine whether the applicant can read, speak, write, and understand the English language, using the FAA AELS as their benchmark. Intervention by an ASI is required whenever there is a question about the applicant's ability to meet the AELS. Instructors, evaluators, and ASIs must follow the current policies and procedures in Volume 5, Chapter 14, Section 1 and the guidance in Advisory Circular (AC) 60-28, FAA English Language Standard for an FAA Certificate Issued Under 14 CFR Parts 61, 63, 65, and 107, to resolve issues that relate to English language competency not associated with a medical condition. Technical Implementation Procedures – Licensing (TIP-L) policy (see Volume 5, Chapter 2, Section 23) requires foreign applications to be processed in person.

C. Requirements During Application Processing.

1) When acting as a certifying official during an in-person appointment with an applicant, all certifying officials must require positive personal identification from the applicant under the regulations as specified in 14 CFR § 61.3.

2) With one exception, an ASI/aviation safety technician (AST) must not accept applications directly from an applicant for a pilot certificate through the mail. See Volume 5, Chapter 2, Section 11 regarding procedures for processing a flight instructor certificate renewal via U.S. mail.

3) ASIs and ASTs routinely receive previously verified and signed paper applications submitted to the responsible Flight Standards District Office (FSDO) from other certifying officials. ASIs and ASTs review and sign off on these applications and forward them to the Office of Foundational Business, Civil Aviation Registry Division (AFB-700), Airmen Certification Branch (AFB-720).

4) Applying for a 14 CFR part 61 certificate is official business with the FAA that requires a language verification by the evaluator and issuance of the Pilot's Bill of Rights (PBR) to the applicant. The paper FAA Form 8710-1, Airman Certificate and/or Rating Application, and the Integrated Airman Certification and Rating Application (IACRA) process require that the evaluator verify the status of the applicant's English language skill at the time of application.

D. Information to Disseminate. ASIs should share the following information during contacts with flight and ground instructors, other evaluators, approved schools, and the aviation community:

> "Certifying officials must meet applicants in person and require positive personal identification from each applicant when conducting practical tests for a 14 CFR part 61 certificate under the regulations as specified in 14 CFR § 61.3. If the holder of an FAA pilot certificate without an English language operating limitation cannot demonstrate compliance with the FAA AELS, evaluators must follow the procedures detailed in Volume 5, Chapter 14, Section 1, and in AC 60-28 (as amended)."

5-315 OPERATING LIMITATIONS FOR HEARING- AND/OR SPEECH-IMPAIRED APPLICANTS.

A. Title 14 CFR Part 61 Specifications. If an applicant is unable to meet English language requirements due to a medical condition, the regulations in 14 CFR part 61 allow the Administrator to issue the applicant's pilot certificate with operating limitations as are necessary for the safe operation of the aircraft. Persons who are unable to meet the requirement because of a hearing or speech impairment must have the medical reason substantiated through a letter from a licensed physician with appropriate letterhead. This letter is sufficient to allow an ASI or AST to proceed with the certification process subject to any special medical test requirements. See Volume 5, Chapter 8, Section 1 for special medical flight test information. A special medical flight test may be used, for example, to allow a pilot to demonstrate the ability to hear and speak the English language. These tests may allow an ASI/AST to remove limitations on an applicant's pilot certificate and provide FAA medical personnel with the test results needed to make adjustments on the pilot's medical certificate, as applicable.

B. Operating Limitations on Pilot and Medical Certificates. This paragraph specifies the exact operating limitations placed by an ASI, AST, or authorized designated examiner on the pilot certificates of persons who are hearing and/or speech impaired due to medical reasons. Other evaluators may not add these limitations, although they may reissue them without change when authorized to reissue a certificate or give a practical test. Note that no ASI, AST, or other evaluator may add or remove a limitation from any FAA medical certificate.

C. Operating Limitations on Persons with a Hearing or Speech Impairment. The ASI, AST, or authorized designated examiner must apply all the following three limitations for hearing- and/or speech-impaired applicants:

- "NOT VALID FOR FLIGHTS WHICH REQUIRE THE USE OF ENGLISH."
- "MAY NOT SERVE AS A REQUIRED PILOT CREWMEMBER IN AN AIRCRAFT THAT REQUIRES MORE THAN ONE PILOT CREWMEMBER BY THE AIRCRAFT TYPE CERTIFICATE OR BY REGULATION, NOR SERVE AS A SAFETY PILOT FOR THE PURPOSE OF 14 CFR § 91.109(c)."
- "NOT VALID FOR FLIGHTS OUTSIDE THE UNITED STATES."

1) A person who is hearing and/or speech impaired may not serve as a PIC or as a required pilot crewmember for any flights requiring the use of a radio for verbal communication. For flights requiring radio use, an appropriately qualified pilot must act as the 14 CFR § 1.1 PIC for the flight. That PIC must meet all the 14 CFR part 61 pilot certification, medical certification, and recency-of-experience requirements. The PIC and any other required pilot crewmember must not be hearing or speech impaired. The PIC:

a) Has final authority and responsibility for the operation and safety of the flight;

b) Has been designated as PIC before or during the flight; and

c) Holds the appropriate category, class, and type rating, if appropriate, for the conduct of the flight.

2) A pilot with a hearing or speech impairment may act as PIC at a towered domestic airport in Class D Airspace, for example, only when one pilot is required, the flight is prearranged with air traffic control (ATC), ATC agrees to allow the flight, and the pilot is able to accept clearances and instructions using light signals or other acceptable means of communication.

D. Flight Instructors with a Hearing or Speech Impairment. Per 14 CFR § 61.183(b), an applicant for a flight instructor certificate must be able to read, speak, write, and understand the English language.

1) Persons who are unable to meet these requirements of 14 CFR § 61.183(b) because of a hearing and/or speech impairment due to medical reasons must have an operating limitation placed on their flight instructor certificate. The Federal Air Surgeon, an authorized FAA medical representative, or a designated Aviation Medical Examiner (AME) will confirm and document the medical condition on the person's application for medical certification, if applicable.

2) Although an applicant who the ASI, AST, or authorized designated examiner has determined to be hearing or speech impaired may take a practical test for a flight instructor certificate, the ASI, AST, or authorized designated examiner must place the following limitation on the flight instructor certificate: "MAY NOT SERVE AS A FLIGHT INSTRUCTOR IN FLIGHT."

3) However, a person who is hearing and/or speech impaired may be able to serve as a flight instructor in an FSTD or advanced aviation training device (AATD), or may serve as a ground instructor in a classroom setting.

E. Practical Test. As a special emphasis item during the practical test of persons who are hearing or speech impaired, the ASI or authorized designated examiner must evaluate the person's ability to receive ATC instructions relayed by the assigned PIC on the flight and comply with instructions without undue delay and within the approved standards.

F. Hearing Enhancement Device. A hearing-impaired person may be able to demonstrate to the FAA that they can understand the English language using a hearing enhancement device (e.g., a cochlear implant). See Volume 5, Chapter 8, Section 1 for the special medical flight test requirements. If the person is able to vocally respond sufficiently in English, meet 14 CFR part 61 specifications without the use of American Sign Language or other aid, and meet all other requirements contained in the special medical flight test letter of authorization, the person may be eligible for removal of the:

- "NOT VALID FOR FLYING WHERE RADIO USE IS REQUIRED" limitation on the person's medical certificate.
- Operating limitations on the person's pilot certificate.
- "MAY NOT SERVE AS A FLIGHT INSTRUCTOR IN FLIGHT" limitation on the person's flight instructor certificate.

G. Impairment After Medical Certificate Issuance. Per 14 CFR § 61.53, if a person becomes hearing and/or speech impaired after issuance of a medical certificate, and the impairment is verified, that person is considered to have a medical deficiency. The medical deficiency in and of itself prohibits a person from acting as a PIC or as a required pilot flightcrew member (in any capacity). That person must inform the FAA Regional Flight Surgeon (RFS) or the Aerospace Medical Certification Division (AAM-300) in Oklahoma City about their impairment. The RFS or AAM-300 will determine if the person is eligible to receive a medical certificate and Statement of Demonstrated Ability (SODA) with the limitation "NOT VALID FOR FLYING WHERE RADIO USE IS REQUIRED." In addition, a designated AME who finds that a pilot is speech and/or hearing impaired should inform the person to contact their responsible FSDO to receive the appropriate operating limitations on the person's 14 CFR part 61 certificates.

5-316 PILOT CERTIFICATE REQUIREMENTS AND THE LOGGING OF FLIGHT TIME IN HANG GLIDERS, ULTRALIGHTS, POWERED (MOTORIZED) GLIDERS, AND OTHER VEHICLES. The following guidance is designed to clarify issues concerning the logging of flight time and minimum pilot certificate requirements for hang gliders, ultralights, and similar vehicles.

A. Noncertificated Vehicles. Title 14 CFR § 103.7(b) does not require airman certification of operators of certain ultralight vehicles.

B. Logging Time. Unless the vehicle is type certificated as an aircraft in a category listed in 14 CFR § 61.5(b)(1) or as an experimental aircraft, or otherwise holds an Airworthiness

Certificate, flight time acquired in such a vehicle may not be used to meet requirements of 14 CFR part 61 for a certificate or rating or to meet recency-of-experience requirements.

C. Minimum Certificate Requirements. To operate a small aircraft with an experimental Airworthiness Certificate, at least a Student Pilot Certificate is required. The certificate must be properly endorsed in accordance with 14 CFR § 61.87, except in the case of an aircraft operating limitation that requires the PIC to hold an appropriate category/class rating. In that case, the pilot must hold at least a Private Pilot Certificate.

D. Logging Time in Powered Gliders. Flight time in a powered glider cannot be logged as required airplane pilot flight time unless the aircraft is type certificated as an airplane. Flight time used to meet recency-of-experience requirements or the requirements for a certificate or rating may only be logged according to the category in which the aircraft is type certificated (e.g., airplane or glider). Powered gliders may be type certificated either as gliders or airplanes.

5-317 PILOT TYPE RATING REQUIREMENTS IN AIRCRAFT CERTIFICATED UNDER SFAR 41. SFAR 41 was adopted to allow certain small (12,500 pounds or less, maximum certificated takeoff weight), propeller-driven, multiengine airplanes originally type certificated in accordance with 14 CFR part 23 before October 17, 1979, to be operated at a maximum type-certificated takeoff weight exceeding 12,500 pounds. Although SFAR 41 expired on September 13, 1983, many of the large airplanes that were certificated under SFAR 41 are still in active service, and per 14 CFR § 91.531(a)(1), a person may operate an airplane certificated under SFAR 41 without a pilot who is designated as SIC if that airplane is certificated for operation with one pilot. The configuration of these airplanes may also be with more than 10 passenger seats. In that case, however, 14 CFR § 135.99(b) requires an SIC for operations conducted under 14 CFR part 135.

A. Commuter and On-Demand Operators. Requirements for commuter and on-demand operators under 14 CFR part 135 were amended to allow the operation of airplanes certificated under SFAR 41. Since the adoption of SFAR 41, operation of these airplanes is routinely conducted under 14 CFR parts 91 and 135. Among the first aircraft to be certificated under SFAR 41 were certain models of Swearingen turboprop airplanes, the first of which was certificated on September 25, 1980.

B. Type Ratings. Under 14 CFR § 61.31(a), a pilot may not act as PIC of a large airplane (more than 12,500 pounds maximum certificated takeoff weight) unless the pilot holds a type rating for that airplane. Title 14 CFR § 61.63(d) provides the requirements for issuance of type ratings. The FAA, through its aircraft type certificate (TC) process, concluded, it could, for example, issue a type rating for the operation of Swearingen-Fairchild SA-226/SA-277 aircraft. Thus, a single-pilot type rating (SA-227) is established and listed within the online Aircraft Type Rating Designators table at https://www.faa.gov/licenses_certificates/airmen_certification.

C. SIC Required. Title 14 CFR § 91.531(a) provides that no person may operate an airplane without a pilot who is designated as an SIC if any of the following conditions apply:

- The airplane is type certificated for more than one required pilot;
- The airplane fits the definition of a large airplane; or

- The airplane is a commuter category airplane.

D. SIC Not Required. Title 14 CFR § 91.531(b) provides for operation of the following airplanes without an SIC:

- Any airplane certificated for one pilot;
- An airplane originally designed with one pilot station; or
- An airplane originally designed with more than one pilot station, but for which single-pilot operations were permitted by the Airplane Flight Manual (AFM) or were otherwise permitted by a branch of the U.S. Armed Forces or the armed forces of a foreign Contracting State to the Convention on International Civil Aviation.

E. ASI Information.

1) Office managers should ensure that all FSDO certification personnel are informed of the above information and are guided by the following instructions concerning the operation of SFAR 41 aircraft.

2) The training, testing, and certification of pilots in a series of aircraft type certificated under SFAR 41 should be accomplished in accordance with the procedures described herein and with appropriate provisions of the operating rules under which the aircraft is to be placed in service. However, the Flight Standardization Board (FSB) responsible for a particular SFAR 41 aircraft may, through its evaluation, determine that a separate type rating is appropriate.

5-318 CONDUCT OF TRAINING AND TESTING SFAR 41 AIRPLANES BY PILOTS WITH A "SECOND-IN-COMMAND REQUIRED" LIMITATION ON THEIR TYPE RATING.

A. SIC Required. The SA-227, EMB-110, BE-300/1900, and certain other SFAR 41 airplanes are type certificated for single-pilot operations. However, depending on the type of operation conducted (e.g., 14 CFR part 135 passenger service), an SIC may be required.

B. Limitation. Applicants for a type rating practical test in certain SFAR 41 airplanes may opt to complete the practical test as a single pilot or by using an SIC. If the single-pilot option is elected, the applicant will receive a type rating without limitation upon satisfactory completion of the practical test. When an applicant satisfactorily completes a practical test using an SIC, the applicant will be issued a type rating with the limitation "SECOND-IN-COMMAND REQUIRED." To enhance crew complement flexibility, there is a need to establish guidelines for the training and flight testing of applicants for type ratings in SFAR 41 aircraft. These guidelines are intended to apply to the following:

- Certificated flight instructors (CFI);
- Airline transport pilots (ATP) conducting instruction in air transportation service;
- Certificated ground instructors associated with a training center that holds exemption authority;

- ASIs;
- Designated Pilot Examiners (DPE), aircraft and full flight simulator (FFS) only;
- Pilot Proficiency Examiners (PPE); and
- Title 14 CFR part 135 air carrier/operator check pilots and instructors.

C. Ground Instruction. The ground instruction required by 14 CFR § 61.63(d) may be given by an appropriately rated flight instructor who holds a type rating (with or without a "SECOND-IN-COMMAND REQUIRED" limitation) on their pilot certificate for the associated airplane. The ground instruction required by 14 CFR § 61.63(d)(6)(ii) for employees of a 14 CFR part 135 air carrier/operator may be given by an instructor authorized by a 14 CFR part 135 approved training program.

D. Flight Instruction. Instructors who conduct training toward the issuance of a type rating must be qualified in accordance with one of the following categories:

1) Hold a valid flight instructor certificate with airplane multiengine and instrument airplane ratings, and have a type rating for the airplane on their pilot certificate. A pilot who has the limitation "SECOND-IN-COMMAND REQUIRED" on the type rating may only instruct an applicant seeking the same privileges and limitation. A pilot with an unrestricted type rating may conduct flight instruction for both limited and unrestricted ratings. For instruction in an airplane in flight, 14 CFR § 61.55(f)(3) provides for an instructor to act as PIC with an SIC who is not qualified in accordance with 14 CFR § 61.55(a) and (b).

2) A flight instructor with a training center.

3) An ATP with the appropriate type rating on their pilot certificate, instructing in air transportation. The ATP can only instruct within the limitations of their pilot certificate.

E. Qualification to Conduct Flight Tests. ASIs and examiners who hold unrestricted type ratings in SFAR 41 airplanes may conduct practical tests in these aircraft leading to the issuance of type ratings with or without a "SECOND-IN-COMMAND REQUIRED" limitation, or operating privileges for single- or two-pilot operations, as appropriate. ASIs and examiners who hold a type rating with a "SECOND-IN-COMMAND REQUIRED" limitation may only conduct practical tests leading to the issuance of type ratings with a "SECOND-IN-COMMAND REQUIRED" limitation, or operating privileges for two-pilot operations, as appropriate. Oral testing may be conducted by an ASI or examiner who is rated in the aircraft, regardless of a "SECOND-IN-COMMAND REQUIRED" limitation.

F. Removal of the "SECOND-IN-COMMAND REQUIRED" Limitation from a Type Rating. See Volume 5, Chapter 2, Section 19, Subparagraph 5-730C, Removal of the "Second in Command Required" Limitation from a Pilot Type Rating on the Pilot Certificate.

5-319 AMENDMENT AND REPLACEMENT OF VALID PILOT CERTIFICATES.

A. Amendments to Certificates by ASIs. Valid pilot certificates and ratings may be reissued, exchanged, or replaced by ASIs with appropriate amendments as applicable based upon changes in personal data. Applicants with a foreign address for official record purposes must

comply with the U.S. agent for service requirements in 14 CFR part 3 subpart C, which require any individual who has a foreign address and no U.S. physical address of record on file with the FAA to designate a U.S. agent for service if they apply for a certificate, rating, or authorization issued under 14 CFR part 47, 61, 63, 65, 67, or 107 or hold a certificate, rating, or authorization issued under any of these parts. Refer to AC 3-1, U.S. Agents for Service on Individuals with Foreign Addresses Who Hold or Apply for Certain Certificates, Ratings, or Authorizations, for information on designating a U.S. agent for service. An applicant may replace a certificate or receive an amended certificate by applying on FAA Form 8710-1. Sport pilot certificates may be reissued by applying on FAA Form 8710-11, Airman Certificate and/or Rating Application—Sport Pilot. Remote pilot certificates may be reissued using FAA Form 8710-13, Remote Pilot Certificate and/or Rating Application. See Volume 5, Chapter 1, Section 7 for specific information on procedures for:

- Change of name/date of birth (DOB) or correction to sex;
- Change of nationality/citizenship;
- Change of address;
- Replacement of pilot and medical certificates and Airman Knowledge Test Reports (AKTR);
- Obtaining a temporary certificate by email or fax for immediate use;
- The flightcrew member certificate verification plan;
- Emergency field issuance of temporary certificates;
- Reconstruction of lost certification files; and
- Replacement of Federal Communications Commission (FCC) licenses.

B. Amendment and Replacement of Certificates When an Inspector is Away From the Office. See Volume 5, Chapter 1, Section 5. Information regarding expiration and nonrenewal of certain older pilot certificates is found in 14 CFR § 61.11.

C. Lighter-Than-Air Category Ratings. On November 1, 1973, pilot certificates with a lighter-than-air category rating, which had no class rating, became obsolete (not expired). The same is true of pilot certificates showing a free-balloon class rating, but not the lighter-than-air category rating. Holders of these certificates were originally qualified in the airship class. There was a time when anyone could walk into a FSDO and, by merely filling out an appropriate form, receive a private pilot certificate with "HOT-AIR BALLOON ONLY" shown in Section XII of the Temporary Airman Certificate.

1) Until April 3, 1965, it was possible to obtain Private Pilot Certificates with balloon class ratings and no category rating depicted on the certificate. Holders of these certificates had to qualify in gas balloons to be authorized to serve as PIC of any sort of free balloon. Individuals who qualified in hot-air balloons with airborne heaters received ratings which read "FREE BALLOON, LIMITED TO HOT-AIR BALLOONS (WITH OR WITHOUT AIRBORNE HEATER)," and could fly any hot-air balloon, but not a gas balloon. Qualification in the carnival-type balloon without an airborne heater limited the CH to these hot-air balloons only.

2) Before November 1, 1973, no provisions existed for issuing Private Pilot Certificates for free balloons; consequently, until October 31, 1975 (when the "grandfather

privileges" of 14 CFR part 61 expired), obsolete balloon pilot certificates were reissued as commercial pilot certificates with appropriate category and class rating.

3) Two conditions may be encountered in exchanging lighter-than-air pilot certificates:

a) If the certificate does not contain a class rating and was submitted for exchange before November 1, 1975, a new Private or Commercial Pilot Certificate, as appropriate, will be issued as "LIGHTER-THAN-AIR-AIRSHIP AND FREE BALLOON."

b) If the certificate shows a lighter-than-air category and contains an airship class rating issued before October 31, 1973, and application was made for a free-balloon rating after November 1, 1975, the holder must pass the appropriate free-balloon flight test. To obtain an unlimited free-balloon class rating, the applicant would have to pass the gas balloon flight test.

4) Several variations of balloon certificates may be presented for exchange.

a) If the obsolete certificate reads "FREE BALLOON," it will be reissued as "LIGHTER-THAN-AIR-FREE BALLOON."

b) If the certificate reads "HOT-AIR BALLOONS ONLY" or "FREE BALLOON, LIMITED TO HOT-AIR BALLOONS (WITH OR WITHOUT AIRBORNE HEATER)," it will be reissued as "LIGHTER-THAN-AIR-FREE BALLOON, LIMITED TO HOT-AIR BALLOONS WITH AIRBORNE HEATER." The hot-air balloon limitation may be removed when the holder obtains the pilot experience required for a rating on a gas balloon. No flight test is required.

c) If the certificate reads "HOT-AIR BALLOON WITHOUT AIRBORNE HEATER" or "FREE BALLOON, LIMITED TO HOT-AIR BALLOONS (WITHOUT AIRBORNE HEATER)," it will be reissued as "LIGHTER-THAN-AIR-FREE BALLOON, LIMITED TO HOT-AIR BALLOONS WITHOUT AIRBORNE HEATER." To have the airborne heater limitation removed, the holder must obtain the pilot experience and pass the flight test required for a hot-air balloon with an airborne heater rating. To have the hot-air balloon limitation removed completely, the pilot must obtain the experience and pass the flight test for free (gas) balloons.

5) If, after November 1, 1974, the applicant obtained the pilot experience (private or commercial) and successfully completed a flight test in a hot-air free balloon without an airborne heater, the limitation in Section XII should be "LIGHTER-THAN-AIR-FREE BALLOON, LIMITED TO HOT-AIR BALLOONS WITHOUT AIRBORNE HEATER." This limitation (without airborne heater) can be removed by obtaining the required experience and passing the flight test required in a free balloon with airborne heater. The limitation in Section XII would then read "LIGHTER-THAN-AIR-FREE BALLOON, LIMITED TO HOT-AIR BALLOONS WITH AIRBORNE HEATER."

6) If the applicant obtains the pilot experience (private or commercial) and successfully completes a flight test in a hot-air free balloon equipped with an airborne heater, the limitation in Section XII would read "LIGHTER-THAN-AIR-FREE BALLOON, LIMITED TO

HOT-AIR BALLOONS WITH AIRBORNE HEATER." This limitation (with airborne heater) can be removed when the holder obtains the experience required for a rating in a gas balloon. This required experience must be obtained in a gas balloon and no flight test is required. Section XII would read "LIGHTER-THAN-AIR-FREE BALLOON."

7) When an applicant obtains the pilot experience (private or commercial) and successfully completes a flight test in a free gas balloon, the limitation in Section XII would read "LIGHTER-THAN-AIR-FREE BALLOON."

8) Title 14 CFR part 61 does not automatically give the holder of a lighter-than-air category with an airship class rating the privilege to serve as PIC of a free balloon. Before the free balloon class rating can be added to the certificate, the experience and skill requirements for this rating must be met.

9) Before adoption of 14 CFR part 61 (revised), there were several cases where a pilot held two certificates, one for heavier-than-air and one for a lighter-than-air class rating.

a) Holders of these certificates may exchange them for a single-pilot certificate bearing all appropriate ratings. Either certificate number may be used.

b) Holders of these pilot certificates should be encouraged to combine them into the one certificate at any time either is amended or reissued.

5-320 VOLUNTARY SURRENDER OF CERTIFICATE OR RATING. An ASI may only accept an application for voluntary surrender, or "downgrading," of a pilot certificate or rating in accordance with 14 CFR § 61.27. No certificate or rating may be accepted for surrender or downgrading unless the applicant submits a request in writing and fully understands that they have no reinstatement rights.

A. Conditions for Surrender. There are four basic conditions for the surrender of an airman certificate or rating:

1) Voluntary surrender unrelated to an enforcement case;

2) Voluntary surrender in anticipation of FAA certificate action;

3) Voluntary temporary deposit of an airman certificate to the custody of the FSDO when an airman's competency has been questioned by the FAA and the enforcement action or reexamination is justifiably delayed; and

4) Surrender at the Office of the Chief Counsel (AGC) attorney's request.

B. Reason for Surrender. An FAA ASI may not accept an airman certificate unless the reason for surrender is identified. Surrender of that certificate must be in accordance with procedures described in this order. Under no circumstance may a pilot certificate be accepted for voluntary surrender unless the ASI immediately contacts AGC and explains the facts and circumstances concerning the surrender. The airman certificate may be accepted only with the concurrence of, and in accordance with, the directions of the attorney with AGC. Legal

enforcement cases involving the surrender of an airman certificate must be forwarded to the FAA attorney for processing no later than 5 business days after the date of certificate surrender.

1) If no enforcement action is pending or being contemplated under 14 CFR § 61.27, an airman may, for personal reasons, voluntarily surrender the certificate to the FAA for the purpose of cancellation of the certificate, reissuance of the certificate at a lower grade, or reissuance of the certificate with specific ratings deleted.

a) An airman may have many reasons for voluntarily surrendering or exchanging a certificate. One reason could be that the FAA has questioned the pilot's competency, and the airman is to be reexamined under Title 49 of the United States Code (49 U.S.C.) § 44709. In this instance, the airman may elect to surrender the certificate or rating, in writing, in lieu of submitting to reexamination (see Figure 5-26, Sample Letter of Surrender (In Lieu of a Reexamination)). For more information see Volume 5, Chapter 7, Section 1.

b) When an airman elects to surrender the certificate as described above, the ASI may accept the certificate, along with a letter of surrender signed by the airman (see Figure 5-27, Sample Letter of Voluntary Surrender of Certificate for Cancellation) and the accompanying acknowledgment letter signed by the FAA employee. The certificate, the original Temporary Airman Certificate (FAA Form 8060-4), the application for the issuance of a modified certificate (FAA Form 8710-1), and the letter of surrender should be forwarded to AFB-720.

c) The surrender letter must clearly spell out the incident or event and the airman's involvement. The letter should state that the airman has been apprised of their legal rights and clearly state the voluntary nature of the surrender in view of these rights. The letter may not be conditional and must be patterned after Figure 5-28, Sample Letter of Surrender (Pending Enforcement Action).

2) An airman may surrender a pilot certificate to the FAA at any stage of an investigation (refer to FAA Order 2150.3, FAA Compliance and Enforcement Program). Great care must be exercised when accepting an airman certificate for surrender when enforcement action is pending.

a) The eventual action of the FAA could possibly be other than certificate action. In addition, AGC may be unable to provide priority handling of such cases (the failure to promptly issue an Order of Suspension or Order of Revocation may impose an undue sanction on the airman).

b) Not only must the surrender be voluntary, but it must also be documented as such. It must be absolutely clear that no FAA coercion was used. For example, if an FAA ASI, during an investigation, told an airman that the airman had violated a regulation, then accepted the certificate for surrender, the action would not appear voluntary. In a legal enforcement case, no FAA ASI has either the authority or responsibility to make such a statement; this is a function of AGC.

c) The airman must be told that any statement the airman makes can and may be used against the airman in legal proceedings, and that the airman need not make any statement without being represented by legal counsel.

d) The airman must be apprised of FAA legal enforcement procedures, as described in 14 CFR §§ 13.15 and 13.19.

3) An airman may temporarily deposit an airman certificate voluntarily in the custody of a FSDO (for a maximum of 30 calendar days at a time) while the airman is preparing for a reexamination of competence. The airman must be informed, in the presence of a third person, that the airman is not required to deposit the airman certificate with the FSDO or to sign any statement. This procedure can also be used for an airman convalescing from an accident or an illness, or for a person having the aircraft repaired that is intended to be used for the reexamination flight check.

a) Temporary deposit must never be used to resolve a violation of the regulations (i.e., reexamination is not used as a punishment or as a substitute for enforcement action). A Temporary Airman Certificate with the original certificate number affixed may be issued to the airman to allow solo practice to prepare for reexamination or to continue flying with limitations. In this case, "PASSENGER CARRYING PROHIBITED" or other appropriate limitations should be included (see Figure 5-20, Sample FAA Form 8060-4, Temporary Airman Certificate Showing Passenger Carry Limitation (Maintained at FSDO Level Only)). For example, if instrument competency is questioned, the Temporary Airman Certificate should omit the instrument rating. The same procedure could be used with any rating questioned. In no case should a Student Pilot Certificate be issued to the holder of another Student (or other) Pilot Certificate. The Temporary Airman Certificate issued and the letter of temporary deposit to the FSDO must have the same expiration date (see Figure 5-22, Sample FAA Form 8060-4, Temporary Airman Certificate Emergency Field Issuance (Maintained at FSDO Level Only), and Figure 5-23, Sample Letter of Temporary Deposit). The ASI may issue a new Temporary Airman Certificate for an additional period of 30 calendar days, provided the airman agrees to such action and submits a new letter of temporary deposit to the FSDO with the appropriate expiration date as described above.

b) If at the end of the expiration date the airman has not passed the reexamination test, fails to appear, or has not made other acceptable arrangements, immediate legal enforcement action (emergency suspension) must be taken to suspend the permanent airman certificate or rating in question until the airman demonstrates competency to hold that certificate.

4) Surrender at the request of AGC is an action taken as the result of an Order of Suspension or Order of Revocation issued by AGC. From time to time, AGC requests the FSDO to pick up a certificate when an airman fails to surrender the certificate as a result of an order from AGC. ASIs should take the following actions:

a) The specific AGC attorney's instructions should be followed. In most cases, it is requested that an ASI contact the airman to be sure the airman understands that the order demands the surrender of the certificate.

b) The ASI must review the Order of Suspension or Order of Revocation so that the ASI is familiar with the allegations. The ASI should then arrange a meeting with the airman. The ASI should take to the meeting a copy of the Order of Suspension or Order of Revocation, a Loss of Certificate Affidavit (see Figure 5-24) or Declaration of Loss (see Figure 5-25), and a franked envelope addressed to AGC.

c) When meeting the airman, the ASI should present official identification and inquire if the airman has received the Order of Suspension or Order of Revocation. If the airman has not received a copy, present the airman with a copy. The ASI should point out the action taken in the order and offer to accept the certificate for surrender to the FAA. The ASI may not enter into a discussion as to the authenticity of the facts, evidence, or the propriety of the sanction. The ASI should advise the airman that failure to surrender the certificate within the period of time specified in the order would make the airman subject to additional action.

d) If the airman states that the certificate is lost, the ASI should give the airman the affidavit form and the franked envelope addressed to AGC. The ASI should instruct the airman to complete the affidavit of loss or declaration of loss and forward it in lieu of the lost certificate.

e) If the airman does not wish to surrender the certificate to the ASI, the ASI should give the airman the franked envelope addressed to AGC so the airman can forward the certificate to the proper office.

f) If at any time the ASI has any reason to believe that a hostile or dangerous confrontation is likely, the matter must be discussed with AGC before taking the action. When a potentially hazardous confrontation is expected, a U.S. Marshal can accompany the ASI to the meeting with the airman.

C. Issuing a Certificate or Rating to an Airman Who is Under an Order of Suspension or Revocation.

1) For an airman making application for a certificate or rating while under an existing Order of Suspension or Revocation, the ASI should arrange a meeting with the airman and review Order 2150.3 for information on Orders of Suspension or Revocation. In addition, the ASI should review 14 CFR §§ 61.13(d)(2) and 61.19(f). At this meeting, the ASI will examine the Order of Suspension or Revocation and become familiar with its contents to ensure that an application from the airman is not accepted prior to the expiration of the periods specified in the previously mentioned sections, or as authorized in the Order of Suspension or Revocation. If found ineligible, the ASI will advise the airman of the reasons.

2) An ASI who receives an application for an airman certificate from an airman whose certificate has been suspended or revoked and who is found ineligible will disapprove the application and issue FAA Form 8060-5, Notice of Disapproval of Application, indicating the reasons for disapproval and using verbiage such as “Applicant disapproved because […].” Do not forward the file to AFB-720.

D. Voluntary Certificate Downgrade. See Figure 5-29, Sample Letter of Voluntary Downgrade.

1) When a person elects to voluntarily downgrade their pilot certificate to a lower certification level to avoid submitting to a 49 U.S.C. § 44709 reexamination practical test, the ASI should consider if the person's desire involves competency and proficiency in the common piloting tasks. For example, if the pilot is required to submit to a 49 U.S.C. § 44709 reexamination practical test because of landing competency and proficiency, then they must accomplish that task at all levels of pilot certification. It is a requirement for the pilot to submit to a 49 U.S.C. § 44709 reexamination practical test, and the ASI must advise them of this. However, the testing standard is at the downgraded level of pilot certification that the person has agreed to.

2) When a pilot elects to voluntarily downgrade their pilot certificate, the pilot must fill out FAA Form 8710-1. Ensure that the box for reissuance of the certificate has been checked and state "downgrade" in the "Specify Other" box. The ASI may accept the certificate along with a letter of voluntary downgrade signed by the airman. The ASI will forward the pilot certificate, the original Temporary Airman Certificate, the application (FAA Form 8710-1) for issuance of the downgraded pilot certificate, and the letter of voluntary downgrade to AFB-720.

3) After examining and verifying the documentation, the ASI issues FAA Form 8060-4 reflecting the appropriate change. The ASI fills out the "Aviation Safety Inspector or Technician Report" section, verifies the "Certificate or Rating Being Applied For" box has been completed with the level and ratings for the certificate issuance on FAA Form 8710-1, and forwards the application, the superseded certificate, and the original temporary certificate to AFB-720.

5-321 REPORT A DECEASED AIRMAN. Use one of the following methods to report a deceased airman.

A. Reporting via Email. An inspector can send an email from an FAA email account to the AFB-720 email account, indicating the deceased airman's full name and DOB or certificate number. The email account is airmenregistry@faa.gov. Once AFB-720 receives this notification, they will update the airman's record to reflect the airman as deceased. The Multi-System Access Tool for Air Personnel (MSAT-A) in the Safety Performance Analysis System (SPAS) will then indicate the airman as deceased.

B. Reporting via Conventional Mail. You can also mail a letter/memo with the same information shown above to:

Federal Aviation Administration
Airmen Certification Branch (AFB-720)
P.O. Box 25082
Oklahoma City, OK 73125-0082

NOTE: The public can visit the following FAA website for guidance on mailing a letter to report a deceased airman: https://www.faa.gov/licenses_certificates/airmen_certification/deceased_airmen.

NOTE: For either method, the FAA recommends, but does not require, that the inspector provide proof of death. This proof can be in the form of a death certificate, National Transportation Safety Board (NTSB) report listing the airman's name indicating death, or other documents confirming the individual's death acceptable to the Administrator. This information is recommended to ensure that the correct changes are made to the airman records and to avoid inadvertent removal of a name and address from the Airman Directory, which is used to disseminate vital safety information.

NOTE: The deceased airman may continue to be sent FAA mailings and publications for a few months after AFB-720 updates the airman's record, but these mailings will eventually stop.

5-322 LOST LOGBOOKS OR FLIGHT RECORDS. Aeronautical experience requirements must be shown for a person to be eligible for the issuance of, or to exercise the privileges of, a pilot certificate. Remind a pilot who has lost logbooks that any fraudulent or intentional false statements concerning aeronautical experience are a basis for suspension or revocation of any certificate or rating held. The pilot who has lost logbooks may, at the discretion of the ASI accepting the application for a pilot certificate or rating, use a signed and notarized statement of previous flight time as the basis for starting a new flight time record. Such a statement should be substantiated by all available evidence, such as aircraft logbooks, receipts for aircraft rentals, FAA Form 8710-1 showing hours in Section III, Record of Pilot Time, and statements of flight operators, as specified in Volume 5, Chapter 1, Section 8. However, an ASI may accept the notarized letter of aeronautical experience without other records, if necessary. Please note that, as long as section III of the airman's last FAA Form 8710-1 was completed and verified by the ASI, these hours may be used for establishing previous logbook hours.

5-323 AUTHENTICATION OF OLD AND NEW AIRMAN CERTIFICATES TO IDENTIFY FORGERIES OR COUNTERFEITS. ASIs are occasionally required to determine the authenticity of an airman certificate. ASIs should be able to recognize legitimate certificates during surveillance or certification activities. Additionally, Law Enforcement Officers (LEO) or drug enforcement agents may ask for assistance in identifying counterfeit or forged certificates.

A. New Security-Enhanced Airman Certificates. On July 31, 2003, AFB-720 began issuing new, security-enhanced airman certificates.

1) The new, durable, credit-card-sized certificates are made from high-quality composite polyvinyl chloride media card stock. They incorporate new security features, such as a hologram of the FAA seal, microprinting, and ultraviolet ink printing.

2) The new certificates feature graphics of the Wright Brothers, 1902 Wright Glider, 1903 Wright Flyer, a Boeing jet aircraft, the Department of Transportation (DOT) seal, and a hologram of the FAA seal.

3) The "old style" certificate (paper) is no longer valid, as of March 31, 2010, in accordance with 14 CFR § 61.19(g). The "new style" certificate will be issued to all airmen and

will be issued with the appropriate seal color. A $2 fee is still required to receive a replacement certificate.

B. Suspected Counterfeiting. Any contact with suspected counterfeit or forged airman certificates should be reported immediately to the Office for Security and Hazardous Materials Safety (ASH), Office of Investigations and Professional Responsibility (AXI-1). Under no circumstances should an ASI attempt to confiscate a suspected forged or counterfeit certificate.

5-324 REMOVAL OF THE 14 CFR § 61.64(f)(2) SOE LIMITATION, "THE [NAME OF THE ADDITIONAL TYPE RATING] IS SUBJECT TO PILOT-IN-COMMAND LIMITATIONS," FROM AN AIRCRAFT TYPE RATING ON A PILOT CERTIFICATE.

A. Actions Required. To remove the SOE limitation, the applicant must:

1) Perform 25 hours of flight time in an aircraft of the category, class, and type for which the limitation applies under the direct observation of the PIC who holds a category, class, and type rating, without limitations, for the aircraft.

NOTE: The PIC is not required to be a check pilot or flight instructor. "Without limitations" refers to the limitation applicable to the PIC (SOE) limitation found on the pilot certificate as a result of 14 CFR § 61.64(f)(2) and not the limitation commonly found on pilot certificates restricting a type rating circling approach to visual meteorological conditions (VMC) only.

2) Log each flight (the PIC who observed the flight attests in writing to each flight).

3) Obtain the flight time while performing the duties of PIC.

NOTE: The requirement in 14 CFR § 61.64(g)(3) that the flight time be obtained while "performing the duties of pilot in command" does not have the same intent as performing the duties of PIC under 14 CFR part 121. A legal interpretation clarified that in the context of 14 CFR part 61, "performing the duties of pilot in command" is equivalent to pilot flying (PF). This legal interpretation also clarified that a pilot may log PIC flight time when the pilot is the sole manipulator of the controls in an aircraft for which the pilot is rated. Refer to the Legal Interpretation to John Duncan (Apr. 13, 2012) at https://drs.faa.gov. Therefore, an SIC serving in 14 CFR part 121 operations may log PIC time when they are the sole manipulator of the controls. This time may also be used to meet the 14 CFR § 61.64(g)(3) requirement as long as the PIC attests to each flight in writing.

4) Present evidence of the SOE to any evaluator or FAA FSDO to have the limitation removed. This would require the applicant to complete an FAA Form 8710-1 application form either using an IACRA application or a paper FAA Form 8710-1. This application process is an administrative action only and requires no practical test.

B. Complete the Application Using IACRA or a Paper FAA Form 8710-1. Use of IACRA is preferred for this process. When a paper application is forwarded to AFB-720, it must

first be reviewed and signed by personnel at the responsible FSDO. A paper application should be completed as follows:

1) On page 1, Section I, Application Information, within the "Ratings" subsection, after "Type Rating," insert the type rating designation for the aircraft type in which the 25 hours were performed and supervised (e.g., "LR-JET"). Do not select the "Added Rating" box.

2) In the "Flight Instructor Recency/Other Information/Requests" subsection of section I, place an "x" in the box for "Limitation Removal." After "Specify Other," type or print "SOE."

3) In Section II, Certificate or Rating Applied For On Basis Of, place an "x" in the box for Block A, Completion of Test or Activity; insert the aircraft type rating used to remove the SOE in Block 1, Aircraft to be Used, and insert the number of hours of SOE in Block 2b, As Pilot-in-Command. Although using Section III, Record of Pilot Time, to record the minimum 25 hours SOE is acceptable according to the instructions accompanying the application (i.e., page iv), if using section III to record the 25 hours, it is imperative that the use of section III does not include any other hours other than the specific 25 hours of aircraft SOE. To elaborate, if the "PIC and SIC" column of section III is used to record SOE in the "PIC" block within that column, it could additionally contain all the pilot's PIC time, and it would not be readily apparent where it contains the minimum 25 hours specific to the aircraft type with the SOE limitation.

4) On page 2 of the form, in the "Designated Examiner or Airman Certification Representative Report" section or the "Aviation Safety Inspector or Technician Report" section, as applicable, the evaluator places an "x" in the box indicating delivery to the applicant of the written notification under the PBR.

5) The evaluator places an "x" in the "Approved—Temporary Certificate Issued (Original Attached)" box.

6) The evaluator places "Removal of SOE limitation from [type rating designation] with 25 hours" in the "Certificate or Rating Being Applied For (Grade, Category, Class and/or Type Rating)" block.

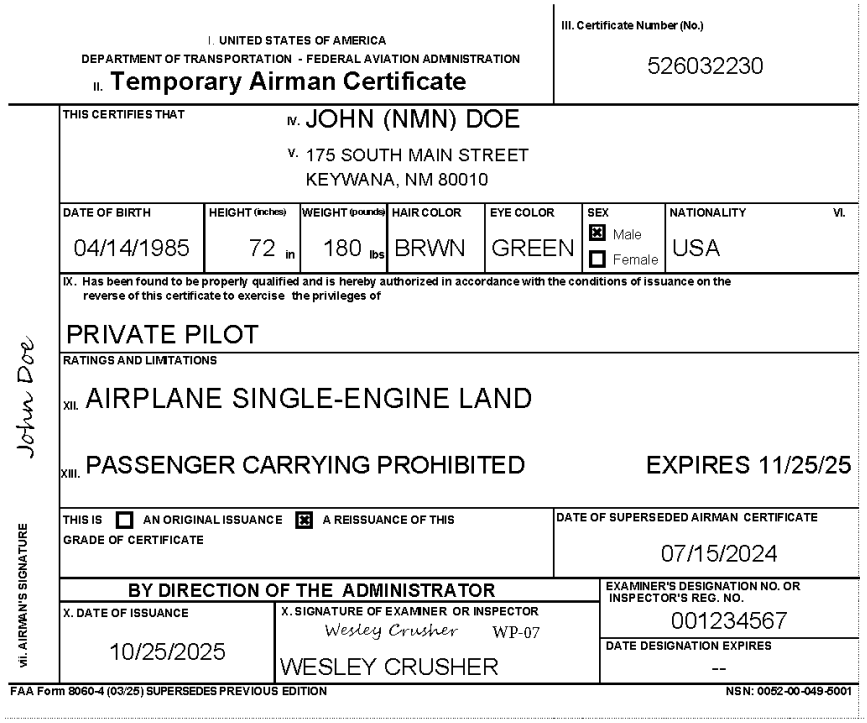
7) The evaluator places an "x" in the "Reissue or exchange of pilot, CFI, or G.I. certificate" box under "Certification Activities."

8) The evaluator completes the remainder of the applicable section with date, name, signature, etc.

9) The evaluator completes the "Attachments" and "Airman's Identification (ID)" sections.

10) The date of the Temporary Airman Certificate must match the date the evaluator signs the applicable report on page 2.

Figure 5-20. Sample FAA Form 8060-4, Temporary Airman Certificate Showing Passenger Carry Limitation (Maintained at FSDO Level Only)



I. UNITED STATES OF AMERICA
DEPARTMENT OF TRANSPORTATION - FEDERAL AVIATION ADMINISTRATION
II. Temporary Airman Certificate

III. Certificate Number (No.): 526032230

THIS CERTIFIES THAT
IV. JOHN (NMN) DOE
V. 175 SOUTH MAIN STREET
KEYWANA, NM 80010

DATE OF BIRTH	HEIGHT (inches)	WEIGHT (pounds)	HAIR COLOR	EYE COLOR	SEX	NATIONALITY VI.
04/14/1985	72 in	180 lbs	BRWN	GREEN	☒ Male ☐ Female	USA

IX. Has been found to be properly qualified and is hereby authorized in accordance with the conditions of issuance on the reverse of this certificate to exercise the privileges of

PRIVILEGES: PRIVATE PILOT

RATINGS AND LIMITATIONS

XII. AIRPLANE SINGLE-ENGINE LAND

XIII. PASSENGER CARRYING PROHIBITED — EXPIRES 11/25/25

THIS IS ☐ AN ORIGINAL ISSUANCE ☒ A REISSUANCE OF THIS GRADE OF CERTIFICATE

DATE OF SUPERSEDED AIRMAN CERTIFICATE: 07/15/2024

BY DIRECTION OF THE ADMINISTRATOR

X. DATE OF ISSUANCE: 10/25/2025

X. SIGNATURE OF EXAMINER OR INSPECTOR: Wesley Crusher WP-07
WESLEY CRUSHER

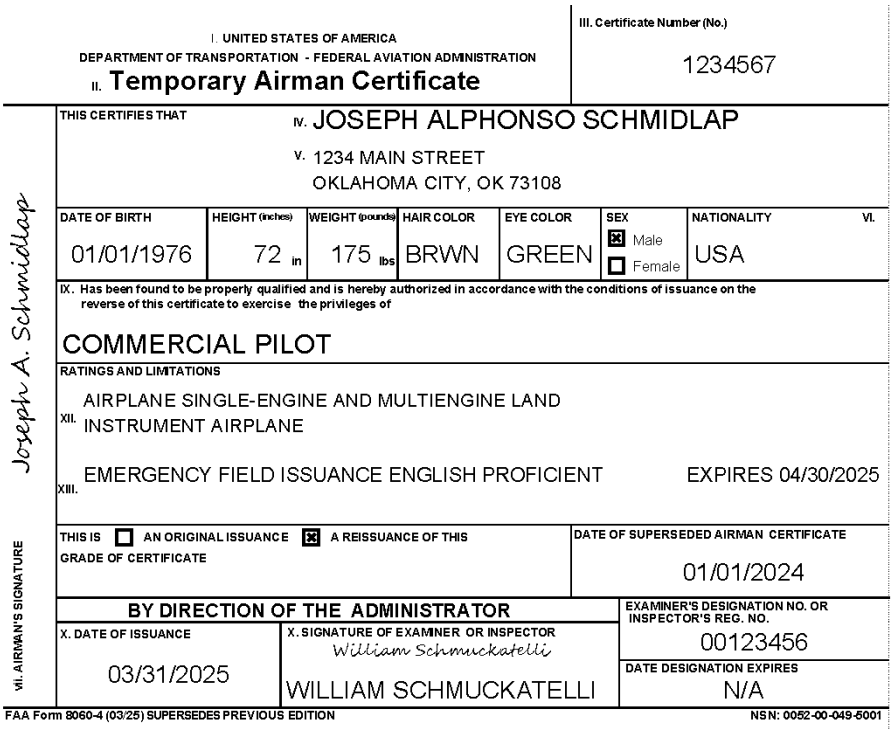
EXAMINER'S DESIGNATION NO. OR INSPECTOR'S REG. NO.: 001234567

DATE DESIGNATION EXPIRES: --

VII. AIRMAN'S SIGNATURE: John Doe

FAA Form 8060-4 (03/25) SUPERSEDES PREVIOUS EDITION NSN: 0052-00-049-5001

Figure 5-22. Sample FAA Form 8060-4, Temporary Airman Certificate Emergency Field Issuance (Maintained at FSDO Level Only)



I. UNITED STATES OF AMERICA
DEPARTMENT OF TRANSPORTATION - FEDERAL AVIATION ADMINISTRATION
II. Temporary Airman Certificate

III. Certificate Number (No.): 1234567

THIS CERTIFIES THAT
IV. JOSEPH ALPHONSO SCHMIDLAP
V. 1234 MAIN STREET
OKLAHOMA CITY, OK 73108

DATE OF BIRTH	HEIGHT (inches)	WEIGHT (pounds)	HAIR COLOR	EYE COLOR	SEX	NATIONALITY VI.
01/01/1976	72 in	175 lbs	BRWN	GREEN	☒ Male ☐ Female	USA

IX. Has been found to be properly qualified and is hereby authorized in accordance with the conditions of issuance on the reverse of this certificate to exercise the privileges of

PRIVILEGES: COMMERCIAL PILOT

RATINGS AND LIMITATIONS

AIRPLANE SINGLE-ENGINE AND MULTIENGINE LAND
XII. INSTRUMENT AIRPLANE

XIII. EMERGENCY FIELD ISSUANCE ENGLISH PROFICIENT — EXPIRES 04/30/2025

THIS IS ☐ AN ORIGINAL ISSUANCE ☒ A REISSUANCE OF THIS GRADE OF CERTIFICATE

DATE OF SUPERSEDED AIRMAN CERTIFICATE: 01/01/2024

BY DIRECTION OF THE ADMINISTRATOR

X. DATE OF ISSUANCE: 03/31/2025

X. SIGNATURE OF EXAMINER OR INSPECTOR: William Schmuckatelli
WILLIAM SCHMUCKATELLI

EXAMINER'S DESIGNATION NO. OR INSPECTOR'S REG. NO.: 00123456

DATE DESIGNATION EXPIRES: N/A

VII. AIRMAN'S SIGNATURE: Joseph A. Schmidlap

FAA Form 8060-4 (03/25) SUPERSEDES PREVIOUS EDITION NSN: 0052-00-049-5001

Figure 5-23. Sample Letter of Temporary Deposit

VOLUNTARY DEPOSIT OF CERTIFICATE

As a result of [*reason*] on [*date*], I hereby voluntarily surrender my [*pilot, mechanic, flight engineer, etc.*] certificate [*number*] for temporary deposit in the [*FSDO routing code*] Flight Standards District Office of the Federal Aviation Administration (FAA) until [*date + up to 30 calendar days*]. If, by that date, I have not demonstrated the airman competence to hold that/those rating(s) to the FAA or received an extension of time within which to take the reexamination, I understand that legal enforcement action will be taken to suspend the privileges of my [*grade of*] certificate until I demonstrate the competence prescribed in the Federal aviation regulations for its original issuance.

Signed,

[*Printed and signed name*]

on this [*date*].

[*Address*]

[*Witness A, date*]

[*Witness B, date*]

[Attach Certificate]

Figure 5-24. Sample Loss of Certificate Affidavit

STATE OF _____
COUNTY OF _____

Mr./Ms. _____, being duly sworn, says:

1. On _____, the only airman certificate held by me was No. _____, with _____ privileges and _____ ratings.

2. By Order of Suspension (or Revocation) dated _____, my airman certificate was suspended (or revoked) effective _____ for a period of _____months (or days) (if revocation, leave period out).

3. I have made a thorough search of the places where my airman certificate could or might be found. Notwithstanding the search, I have not been able to find such certificate. I do not know where such certificate presently is nor where it may be found; I believe it to be lost.

4. For the above reason, I am unable to surrender my airman certificate number _____; however, if and when such certificate is found while suspended, I will surrender it to the Federal Aviation Administration (FAA).

[*Airman's Signature*]

SUBSCRIBED AND SWORN TO before me this _____ day of _____, _____

[*Seal*]

Notary Public in and for

[County]

State of _____

My Commission expires on _____

Figure 5-25. Sample Declaration of Loss

STATE OF: _____
COUNTY OF: _____

DECLARATION OF LOSS

I, [*airman's name*], hereby declare and state as follows:

1. I am over 18 years old and competent to make this declaration.

2. I hold the [*certificate(s)*] issued on (for medical) [*date*] (and any other medical certificates that I have held).

3. I have made a thorough search of the places where my certificate(s) could or might be found. Notwithstanding such search, I have not been able to find my certificate(s). I do not know where they are presently or where they may be found. I believe that any certificate(s) I had are lost.

4. Due to the circumstances indicated in paragraph 3, I am unable to surrender my certificate(s). However, if and when I find any of my certificate(s), I will surrender them to the Office of the Chief Counsel (AGC) of the Federal Aviation Administration (FAA).

5. I understand that submitting a false declaration could subject me to fines and/or imprisonment.

6. I hereby submit this declaration in lieu of the surrender of my certificate(s). Pursuant to Title 28 of the United States Code (28 U.S.C.) § 1746, I declare under penalty of perjury that the foregoing is true and correct.

_____ _____

Airman's Name **Date**

Figure 5-26. Sample Letter of Surrender (In Lieu of a Reexamination)

VOLUNTARY SURRENDER IN LIEU OF REEXAMINATION

[*Date*]

I hereby voluntarily surrender my [*type*] pilot certificate [*number*] to the Federal Aviation Administration (FAA) for [*reason, e.g., cancellation*]. I understand that this constitutes unequivocal abandonment of the certificate and that an FAA airman certificate or rating may not be reissued to me unless I again pass all the tests prescribed for its issue.

[*Signature*]

Figure 5-27. Sample Letter of Voluntary Surrender of Certificate for Cancellation

VOLUNTARY SURRENDER OF CERTIFICATE FOR CANCELLATION

I, [*airman name*], the holder of a [*grade of*] certificate, No. [*number*], issued by the Federal Aviation Administration (FAA), request that the FAA accept the voluntary surrender of that certificate for [*reason, e.g., cancellation*]. This request is made for my own reasons, with full knowledge that my [*grade of*] certificate may not be reissued to me unless I again pass the tests prescribed for its issuance.

[*Airman name/signature*]

[*Date*]

ACKNOWLEDGMENT OF ACCEPTANCE AND COORDINATION

I, [*FAA employee*], an [*title*], accept the specified certificate and acknowledge that [*airman name*] freely and voluntarily surrendered the specified FAA certificate to the FAA on [*date*]. I further acknowledge that this certificate holder's request for this voluntary surrender has been coordinated and concurred with by other FAA offices, as appropriate.

[*FAA employee*]

[*Date*]

Figure 5-28. Sample Letter of Surrender (Pending Enforcement Action)

VOLUNTARY SURRENDER FOR DEPOSIT PENDING ENFORCEMENT

[*Date*]

As the result of the occurrence at [*location*] on [*date of incident*], [*the airman must explain in full, in their own language, the occurrence and their involvement*].

I hereby voluntarily surrender my pilot certificate [*number*] for whatever action the Federal Aviation Administration (FAA) may deem necessary. My rights to be heard as to why my certificate should not be amended, suspended, or revoked have been fully explained to me and are hereby waived.

[*Signature*]

Figure 5-29. Sample Letter of Voluntary Downgrade

VOLUNTARY CERTIFICATE DOWNGRADE ACKNOWLEDGMENT OF ACCEPTANCE AND COORDINATION

I, [*pilot's name*], holder of [*grade/rating*] certificate No. [*number*], freely and voluntarily surrender my specified Federal Aviation Administration (FAA) certificate to the FAA on [*date of surrender*], for downgrade to a [*grade/rating*] certificate. I understand that I must take all knowledge and practical tests to requalify for the [*grade/rating*] Pilot Certificate. This request is made for my own reasons, with full knowledge that my [*grade/ratin*g] certificate may not be reissued to me unless I again pass the tests prescribed for its issuance.

[*Airman name/signature*]

[*Date*]

[*Inspector name/signature*], Aviation Safety Inspector

[*Date*]

RESERVED. Paragraphs 5-325 through 5-340.